

CASE SUMMARY

State v. Mustak Hussain

SC No. 1030/2022 | FIR No. 146/2021, PS Shastri Park | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	9 January 2026 (date of inspection / offence: 21 January 2021)
PARTIES	State (BSES Yamuna Power Ltd.) v. Mustak Hussain S/o Shabbir Hussain, R/o H. No. B-10A, Ground Floor, Khasra No. 1/91, Gali No. 1, Shastri Park, Delhi
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 313 & 41A, Cr.P.C.; Regulations 60–63, DERC (Supply Code) Regulations, 2007
RESULT	Convicted under Section 135, Electricity Act, 2003. Civil liability on the theft bill (Rs. 72,006/-) settled and the amount deposited during trial. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Mustak Hussain dishonestly abstracted electricity at his unmetered ground-floor premises — used for scrap/labour work — through a 14-metre yellow cable hooked from a BSES YPL pole, so as to attract Section 135(1)(a) of the Electricity Act, 2003; and whether he discharged the onus cast by the presumption in the third proviso to Section 135(1).

FACTS

On 21 January 2021 at about 11.30 a.m., an inspection team of BSES Yamuna Power Ltd. headed by Sh. R.B. Yadav (Assistant Manager) inspected the ground-floor premises at H. No. B-10A, Khasra No. 1/91, Gali No. 1, Shastri Park, Delhi. No electricity meter was installed; the accused was found drawing supply through a yellow cable — 14 metres long — connected from a BSES YPL pole. The connected load was 1.501 KW, the premises being used for scrap/labour work; one Sameer, the accused’s worker, was present at the spot. Sh. Mohsin videographed the proceedings and furnished a Section 65B certificate; an Inspection Report, Load Report, Seizure Memo and Advisory Notice were prepared at the spot. The company assessed a theft demand of Rs. 72,006/-, which went unpaid, and on its Authorised Officer’s complaint FIR No. 146/2021 was registered at PS Shastri Park.

The IO, HC Sushil Kumar, recorded the statement of the worker Sameer (Ex.PW1/G), who stated that he did scrap labour at the ground floor and that the accused committed the theft by hooking an illegal wire from the BSES pole. Notice under Section 251 Cr.P.C. was given on 3 April 2024; the accused pleaded not guilty. The prosecution

examined three witnesses: PW-1 HC Sushil Kumar (IO; proved the FIR, site plan, Section 41A notice, interrogation report, Aadhaar, ownership documents, Sameer's statement and the Pabandinama); PW-2 R.B. Yadav (team head; proved the CD, inspection report, load report, seizure memo, advisory notice, theft bill and complaint, and the seized 14-metre yellow cable Ex.P1); and PW-3 Mohsin (videographer; proved the video and the Section 65B certificate Ex.PW3/A). Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication; he led no defence evidence. His counsel submitted that the civil liability had been settled and the amount deposited.

REASONING OF THE COURT

HEADNOTE

A long cable hooked from the licensee's pole to run scrap work at unmetered premises is direct theft under Section 135(1)(a); a worker's statement placing the theft at the premises, the accused's failure to object to the advisory notice within the stipulated four days, and his settlement of the bill all corroborate guilt, and the un rebutted third-proviso presumption convicts.

Section 135(1)(a) was engaged by the pole hook. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for "dishonestly," and treated the yellow cable run from the BSES pole to the unmetered ground-floor premises as a clause (a) connection with the licensee's lines. On proof of that artificial means the third proviso's presumption arose.

The inspection stood proved, and the worker's statement corroborated the theft. PW-2 and PW-3 were consistent on the absence of any meter, the pole-hooked cable, the 1.501 KW load run entirely on the illegal wire, and the seizure; PW-2 testified that at inspection no electricity was drawn from any meter, the whole load running on the illegal cable. The IO proved the statement of the worker Sameer, who placed the scrap work at the ground floor and the theft on the accused; the accused never denied that Sameer was his worker there.

The unanswered advisory notice fortified the finding of guilt. The advisory notice (Ex.PW2/E) expressly invited the accused to file a written objection to the inspection within four working days. He filed none — conduct the Court read as indicating involvement, since an innocent consumer would have objected before the competent authority.

The absence of a public witness did not weaken the prosecution. No animosity of the officials was shown; on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, the official inspection report carries a presumption of regularity, and on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010), non-examination of an independent witness is no infirmity. No procedural lapse under DERC Regulations 60–63 was suggested.

The presumption was compulsory, and settlement of the bill fortified the case. Following *Neeraj Dutt* and *Hiten P. Dalal* on the compulsory presumption and its rebuttal standard, the Court noted the accused led no defence evidence, claimed no Genset, and produced no paid bills (*Mukesh Rastogi*; Section 106 onus). His settlement and deposit of the Rs. 72,006/- bill, rather than protest against a false claim, fortified the prosecution case. The presumption stood un rebutted.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply to unmetered premises through a long cable hooked from the licensee’s pole as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

DERC (SUPPLY CODE) REGULATIONS, 2007 — REGULATIONS 60 TO 63

The Court reproduced Regulations 60–63 — the inspection power with photo-identification safeguards (Reg. 60), the contemporaneous site report with seizure, sealing and photographic/video documentation (Reg. 61), the prosecution procedure with the 24-hour police complaint and the caution that a missing meter seal alone cannot found a theft case (Reg. 62), and the assessment at twice the applicable tariff for up to twelve months with credit for units already paid (Reg. 63). Unchallenged compliance confirmed the inspection’s regularity; the Rs. 72,006/- assessment measured the theft and required no separate proof as an ingredient.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter was available at the accused’s premises and that Mustak Hussain was found indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, he failed to rebut the statutory presumption. **Mustak Hussain is accordingly convicted under Section 135 of the Electricity Act, 2003**, and is to be heard on the quantum of sentence.

SIGNIFICANCE

A scrap-workshop theft corroborated by a worker’s statement and an unanswered advisory notice. Five propositions stand out:

- **A worker’s statement can anchor occupancy and theft.** Sameer’s statement placed the scrap work — and the theft — at the accused’s premises, and the accused never denied that Sameer was his worker there.
- **Silence on the advisory notice cuts against the accused.** The advisory notice invited a written objection within four working days; filing none was read as conduct consistent with guilt.
- **Load size does not gate the offence.** A modest 1.501 KW load was still direct theft; the deliberately laid 14-metre cable showed an engineered, dishonest tap.

- **Settlement corroborates guilt.** Settling and depositing the theft bill was read as conduct inconsistent with innocence, not as neutral compromise.
- **The reverse-onus presumption did the rest.** No meter, an unexplained running load, no Genset, no paid bills — the compulsory presumption convicted.

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.